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Authority for Personal Data

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The Minister for Legal Protection

P.O. Box 20301

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Date

November 2, 2023

Our reference

2023-226607

Your letter dated

July 3, 2023

Your reference

4713180

Subject

Amendment note to the draft amendment to the Return and Detention of Aliens Act

Dear Mr. Weerwind,

In your letter dated July 3, 2023, the Authority for Personal Data (AP) was consulted pursuant to the provisions of Article 36, fourth paragraph, of the General Data Protection Regulation (GDPR), regarding the draft amendment to the Return and Detention of Aliens Act with a view to maintaining the possibilities for taking measures against troublesome aliens.

The AP notes that the explanatory memorandum does not provide an account of the considerations made in light of the principles that apply under Article 5 GDPR for the processing of personal data and the requirements that, from the perspective of the legality of the processing (Article 6 GDPR), are imposed on national legislation in this regard. It advises first to supplement the explanation on this point with a paragraph on the matter and to submit the draft with the supplemented explanation again for advice to it.¹ See also the assessment framework used by the AP in the appendix.

This advice will be published on the AP's website within two weeks.

Yours sincerely,

Authority for Personal Data,

Aleid Wolfsen

Chairman

¹ See also Guidelines for Legislation 4.43, under d, and 5.33.

Date

November 2, 2023

Our reference

2023-226607

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APPENDIX

Assessment Framework

The AP assesses whether the draft concerning the processing of personal data is in accordance with the Charter of Fundamental Rights of the European Union (EU), the general legal principles of the EU, the GDPR, and other relevant law, whereby it must be sufficiently demonstrated that the principle of proportionality is met, by:

- the draft being suitable for achieving the pursued objective of general interest or the protection of the rights and freedoms of others (1. suitability);
- the objective cannot reasonably be achieved as effectively by other means that are less intrusive to the fundamental rights of the individuals concerned (2. subsidiarity);
- the interference is not disproportionate to that objective, which particularly implies a weighing of the importance of the objective and the severity of the interference (3. proportionality);
- the draft is sufficiently clear and precise regarding the scope and is predictable in its application (4. legal certainty);
- the draft sufficiently indicates under which circumstances and conditions personal data may be processed, thereby ensuring that the interference is limited to what is strictly necessary (5. substantive and procedural safeguards); and
- the draft is binding under national law (6. bindingness under national law).